

JP MORGAN CHASE BANK N.A. v WORMINGTON

25CF15463

PLAINTIFF'S MOTION FOR JUDGMENT ON THE PLEADINGS

This is an action by JP Morgan Chase Bank, N.A. ("Plaintiff") against Jones E. Wormington ("Defendant") for the collection of a credit card debt in the sum of \$6,690.96.

In his Answer, Defendant did not deny the allegations in the Complaint but asserted, as a defense, that he had previously tried to set up payment plan.

Now before the Court is Plaintiff's motion for judgment on the pleadings.

I. Legal Standard

A motion for judgment on the pleadings serves the same function as a demurrer but is made after the time for demurrer has expired. (Code Civ. Proc., § 438(c)(2); *Cloud v. Northop Grumman Corp.* (1998) 67 Cal.App.4th 995, 999.) Except as provided by statute, the rules governing demurrers apply. (*Id.*) The court must accept as true the factual allegations of the complaint and must give them a liberal interpretation. (*Gerawan Farming, Inc., v. Lyons* (2000), 24 Cal. 4th 468, 515-516.) In addition, the court is limited in its consideration to the face of the pleadings or matters entitled to judicial notice. (Code Civ. Proc. § 438(d).)

If the motion is granted in favor of the plaintiff, "it shall be based on the grounds that the complaint states facts sufficient to constitute a cause of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. (Code Civ. Proc. §438(c)(3)(a).)

II. Legal Analysis

A breach of contract claim requires: 1) the existence of a contract, 2) plaintiff's performance or excuse for nonperformance, 3) defendant's breach, and 4) the resulting damages to the plaintiff. (*San Mateo Union High Sch. Dist. v. Cnty. of San Mateo*, (2013) 213 Cal. App. 4th 418, 439.) "Where contract language is clear and explicit and does not lead to absurd results, we ascertain intent from the written terms and go no further." (*Shaw v. Regents of Univ. of Cal.*, (1997) 58 Cal. App 4th 44, 53.)

Plaintiff and Defendant entered into a contract for a consumer credit card. (Declaration of Yatzka Hoyos ("Hoyos Decl.") ¶ 3.) Pursuant to the contract, Plaintiff provided credit and Defendant used that credit to make consumer purchases. (*Id.* ¶ 4.) Defendant incurred charges, was provided statements detailing those charges, and did not object or deny that he had incurred those charges. (*Id.* ¶¶4-6.) However, Defendant stopped

making payments towards the balance on the subject account and his last payment was on October 11, 2024. (*Id.* ¶ 7.) Defendant has an unpaid balance on his account of \$6,690.96 (*Id.* ¶8.)

Plaintiff has carried its burden of demonstrating evidence supporting all elements of its claim for breach of contract and that there are no affirmative defenses available. Defendant has not filed any opposition to the motion and makes no argument on his behalf.

III. Conclusion

Plaintiff's Motion for Judgment on the Pleadings is **GRANTED. The Trial Confirmation Conference scheduled for June 2, 2026, and the Court Trial scheduled for June 4, 2026, are Vacated.**

The clerk shall provide notice of this ruling to the parties forthwith. The Court intends to sign the submitted proposed Order.

BUTTS v FCA US, LLC, et al

25CV47877

DEFENDANTS' MOTION TO COMPEL DISCLOSURES

This is a lemon law matter brought by Plaintiff Alan Butts ("Plaintiff") against FCA US, LLC ("FCA") and Stoneridge Chrysler Jeep Dodge ("Stoneridge") (collectively "Defendants.") Now before the Court is Defendants' motion to compel initial mandatory disclosures.

I. Background

Plaintiff purchased a 2022 Ram 3500 vehicle on July 21, 2022, for a total sales price of \$117,829.44. Plaintiff filed the Complaint in this action on February 11, 2025. FCA US, LLC filed its Answer on May 5, 2025.

Pursuant to California Code of Civil Procedure section 871.26, subdivision (f), Plaintiff was required to provide all mandatory initial disclosures within 60 days of the filing of an Answer or other responsive pleading. Plaintiff apparently did not provide some of the mandatory disclosures. Plaintiff has not filed any opposition.

II. Legal Standard

Code Civil Procedure section 871.26 provides for expedited discovery procedures in lemon law actions. Specifically, section 871.26(f)(1)-(11) and (g)(1)-(11) provide for the production of specific documents within 60 days of the filing of the responsive pleading.

Code Civil Procedure section 871.26(j)(1) provides, in pertinent part, the following:

Unless the party failing to comply with this section shows good cause, notwithstanding any other law and in addition to any other sanctions imposed pursuant to this chapter, a court shall impose sanctions as follows:(1) [a] one-thousand five-hundred-dollar (\$1,500) sanction against the plaintiff's attorney. . . paid within 15 business days for failure to comply with the document production requirements as prescribed in subdivision (b).

There is no meet and confer requirement set forth in Code Civil Procedure section 871.26. (*Beltran v. FCA US LLC*, 2025 Cal.Super.LEXIS 79237.)

III. Discussion

FCA filed its answer on May 5, 2025, which required Plaintiff to produce the mandatory documents by July 4, 2025, pursuant to CCP § 871.26.